

**SUBSTITUTE FOR
HOUSE BILL NO. 4692**

A bill to amend 1980 PA 299, entitled
"Occupational code,"
(MCL 339.101 to 339.2677) by adding section 1205b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1205b. (1) The department shall issue a secondary school**
2 **facility license to a person that holds a license to operate a**
3 **school of cosmetology if all of the following requirements are met:**

4 (b) An application as described in subdivision (b) is
5 submitted for approval to the department by the owner or manager of
6 the secondary school facility.

7 (b) The application includes a statement of how the secondary
8 school facility will be used, the address of the premises of the
9 secondary school facility, and a current, detailed floor plan of



1 the proposed premises that includes, but is not limited to, all of
2 the following:

3 (i) The arrangement of the classroom.

4 (ii) The placement of equipment.

5 (iii) The location of entrances and exits of the premises.

6 (c) The secondary school facility meets all requirements for a
7 school of cosmetology as described in section 1205(2), except the
8 secondary school facility must not offer cosmetology services to
9 the public and must not contain equipment that may be used to
10 perform cosmetology services on the public, including, but not
11 limited to, hair-drying chairs, hydraulic styling chairs, or hair-
12 styling stations.

13 (d) All of the cosmetology services training that the
14 secondary school facility offers is provided by a licensed
15 cosmetology instructor who has not less than 3 years' experience in
16 all of the cosmetology services for which training is offered.

17 (e) The secondary school facility passes an inspection
18 conducted by and approved by the department.

19 (2) The owner or manager of a secondary school facility shall,
20 at all times, display a copy of the secondary school facility
21 license and the license of each instructor who works at the
22 secondary school facility in a prominent place in the secondary
23 school facility that is visible to the public.

24 (3) The department shall regularly inspect each secondary
25 school facility to determine whether the licensee is conforming to
26 this section and the rules promulgated under this section.

27 (4) A licensee's secondary school facility license is
28 considered void if there is a sale or other transfer of the
29 secondary school facility, a sale or other transfer of ownership,



1 or a change in the location of the secondary school facility. If a
2 license is considered void under this subsection and a person
3 wishes to continue to operate a secondary school facility, the
4 person must submit a new license application and obtain a new
5 secondary school facility license.

6 (5) Not later than 18 months after the effective date of the
7 amendatory act that added this section, the department, in
8 consultation with the board, shall promulgate rules to implement
9 this section under the administrative procedures act of 1969, 1969
10 PA 306, MCL 24.201 to 24.328.

11 (6) As used in this section:

12 (a) "Secondary school facility" means a school that teaches
13 cosmetology in a classroom setting and meets all of the following
14 requirements:

15 (i) Is associated with a school of cosmetology.

16 (ii) Is operated by the person that holds the license to
17 operate the school of cosmetology that the secondary school
18 facility is associated with.

19 (iii) Is located at a premises that is separate from the
20 premises of the school of cosmetology.

21 (b) "Secondary school facility license" means a license to
22 operate a secondary school facility that meets the requirements of
23 this section.